

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, January 23, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30845 against PO Haroon Hussain, Tax Registry No. 972012. The case was conferenced on January 16, 2025, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of Training for DADS No. 2024-30845, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

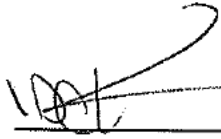
CASE NO.
C-030966BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, HUSSAIN	FIRST HAROON	M.I.	COMMAND 013
SHIELD NO. 27720	TAX REGISTRY NO. 972012	SOCIAL SECURITY NO.	DATE APPOINTED 07/07/2021	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Haroon HUSSAIN, on or about February 11, 2023, at approximately 0030, while assigned to 013 PCT and on duty, in the vicinity of 158 Ludlow Street, New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer Hussain threatened to remove § 87(2)(b) to the hospital without sufficient legal authority.		TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.



FIRST DEPUTY COMMISSIONER3/12/25

DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)

POLICE COMMISSIONER3/25/25

DATE



POLICE DEPARTMENT

July 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301380 (Incident Date: February 11, 2023) regarding Police Officer Haroon Hussain, Tax No. 972012 (DADS No. 2024-30845)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301380, pertaining to Police Officer Haroon Hussain. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Hussain would be detrimental to the Police Department's disciplinary process.

After reviewing the available evidence, the Police Commissioner disagrees with the CCRB and finds that Officer Hussain was within guidelines when he removed the phone from the complainant's hand while the complainant was handcuffed. However, the Police Commissioner agrees with the CCRB that it was improper for Officer Hussain to threaten to remove the complainant to the hospital.

Officer Hussain has no prior substantiated CCRB cases and no formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Officer Hussain a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the allegation regarding the threat to remove to the hospital. However, the Police Commissioner intends to impose no disciplinary action against Officer Hussain for the discourtesy allegation.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

August 1, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202301380 (Incident Date: February 11, 2023) regarding Police Officer Haroon Hussain, Tax No. 972012 (DADS No. 2024-30845)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 31, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Hussain would be detrimental to the Police Department’s disciplinary process. Consequently, you concluded you would retain jurisdiction, and impose no disciplinary action against PO Hussain in connection with the discourtesy allegation. Nevertheless, you also determined that you would separately direct the issuance of a Schedule “A” Command Discipline and the forfeiture of five (5) vacation days to PO Hussain for threatening to remove the complainant to the hospital.

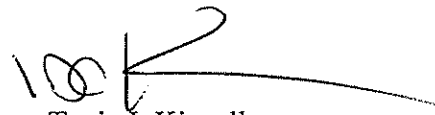
We disagree with your determination that PO Hussain’s discourteous conduct does not warrant the serving of Charges and Specifications. PO Hussain violated Departmental policy when he confiscated a phone from an already-restrained complainant; the phone could not facilitate his escape, nor did it pose a risk to himself or the assembled officers. The CCRB respectfully requests that you permit the disciplinary process against PO Hussain to continue and allow the Charges and Specifications to be served upon PO Hussain.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 12, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-30845 (PODS Case No. C-030966; CCRB Case No. 202301380) against Police Officer Haroon Hussain, Tax No. 972012, with the recommendation that the Charges and Specifications against Police Officer Hussain be dismissed and that Police Officer Hussain receive Training. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

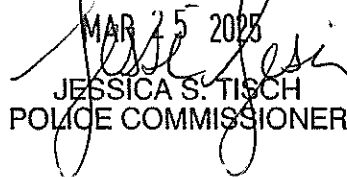


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED



MAR 25 2025
JESSICA S. TISCH
POLICE COMMISSIONER